

contractor] with whom he stood in contractual privity” (id.) (which Plaintiff is also doing here). The court then finally noted, after a “furthermore,” that the property owner had paid its general contractor. (Id.) The throw away point in response to a “minor contention” is hardly the court’s holding or the basis of it, or a reason for this Court to deviate from clear authority.

Further, and also as noted by Defendant, Plaintiff then mischaracterizes the “holding” of *Truestone* claiming that the court denied quasi-contractual recovery because the claim was not sufficiently plead and there was no allegation the property owner failed to pay the general contractor, and not because of some “overarching rule that subcontractors cannot make quasi-contractual claims against property owners.” But that is not what the court held, and there is such an overarching rule.

Instead, the *Truestone* Court held only that “[a] subcontractor, who has no direct contractual relationship with the property owner, may generally not recover on an unjust enrichment theory for benefits conferred on the property.” (*Truestone*, 163 Cal.App.3d at 724.) It noted that this “principle (i.e., overarching rule) is “widely accepted.” (Id.) The Court did not state that its ruling would be different if the property owner had not paid the general contractor, or if the claim had been better pled, and “a decision is not authority for propositions not considered by the court.” (*Maria Torres v. City of Yorba Linda* (1993) 13 Cal.App.4th 1035, fn. 5.) To the contrary, the lack of a proper pleading appeared to have been simply a separate, independent reason the *Truestone* court precluded recovery for unjust enrichment

Equally important, in addition to failing to meaningfully distinguish *Truestone* and *Rogers*, Plaintiff is unable to cite a single case in which a court actually allowed a subcontractor to pursue quasi-contract or quantum meruit claims against a property owner, regardless of whether a property owner paid its general contractor. Instead, Plaintiff is asking this Court to ignore “widely accepted” and “long and well established” law by creating an exception no court has ever applied. SUSTAINED WITHOUT LEAVE TO AMEND.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509095	KC DBW D1, LLC VS HIGHWAY DISTRIBUTION LLC	HEARING RE: MOTION FOR ENTRY OF JUDGMENT PURSUANT TO WRITTEN SETTLEMENT AND CCP 664.6 BY KC DBW D1, LLC

Tentative Ruling: No tentative. Hearing will be conducted on Tuesday, August 25th 2026 at 8:30 a.m. in Department PS2.